

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

September 2, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	21CV387639	<i>Elizabeth Chung, et al.</i> <i>v.</i> <i>Altva Capital Management Limited, et al.</i>	Order on Motion by Attorney Daniel J. Mash of McPharlin Sprinkles & Thomas LLP to be Relieved as Counsel for Cross-Defendant Bend Capital, LLC Attorney Daniel J. Mash of McPharlin Sprinkles & Thomas LLP moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Cross-Defendant Bend Capital, LLC. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by attorney Mash and filed with this Motion. Moreover, as a corporation is <i>required</i> under California law to be represented by counsel in civil actions, Bend Capital, LLC is ORDERED to retain new counsel to represent it in this case within 30 days of today. And as his last task in this case, attorney Mash must convey this ORDER to Bend Capital, LLC <i>today</i>. SO ORDERED.

9:01 2	26CV486244	<i>Sofi Bank, National Association v. Michael Chang, et al.</i>	Order on Motion by Defense counsel Jerry Wang of Huron Legal Group, P.C. to be Relieved as Counsel for Defendant Michael Chang Defense counsel Jerry Wang of Huron Legal Group, P.C. moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendant Michael Chang. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by attorney Wang and filed with this Motion. SO ORDERED.
9:01 3			
9:01 4			
9:01 5			
9:00 1	25CV474504	<i>Adedayo Abioye v. Abraham Chapa, et al.</i>	Order on Plaintiff's Motion for Judgment on the Pleadings See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 2	25CV480278	<i>Richard Ledesma, et al.</i> <i>v.</i> <i>Kelly Primeau, et al.</i>	Order on Cross-Defendant Ledesma's Demurrer to the First Amended Cross-Complaint Under California Rule of Court 3.1322(b), the Court CONTINUES this Demurrer to December 4, 2026 at 9:00 AM in Department 16, where it will be heard at the same time as Cross-Defendant Ledesma's Motion to Strike Portions of the First Amended Cross-Compliant, which also is hereby ADVANCED from its currently-set hearing date of March 24, 2027, to December 4, 2026 at 9:00 AM in Department 16. As the concurrently-filed Demurrer and Motion to Strike are required to be heard at the same time, they will both be heard on December 4, 2026 at 9:00 AM in Department 16. C.R.C. 3.1322(b).) SO ORDERED.
9:00 3	25CV481631	<i>Rina Panigrahy, et al.</i> <i>v.</i> <i>Archbishop Mitty High School, et al.</i>	Order on Defendant City of San Jose's Demurrer to Plaintiff's Complaint See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 4	22CV407932	<i>J.C.</i> <i>v.</i> <i>Watchtower Bible and Tract Society of New York, Inc., et al.</i>	Order on Defendant Watchtower's Motion for Summary Judgment against Plaintiff J.C. See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 5	25CV472081	<i>Shan Allen Laliberte, et al.</i> <i>v.</i> <i>F.S. Trucking Company, et al.</i>	Order on Plaintiff Laliberte's Motion to Compel Defendant F.S. Trucking Company, Inc., to Respond to Plaintiff's Requests for Production of Documents, Set One, and for Sanctions At the request of the moving party, this Motion is OFF CALENDAR . SO ORDERED.
9:00 6	25CV462049	<i>Michael Ramos-Mauro, et al.</i> <i>v.</i> <i>General Motors LLC, et al.</i>	Order on Plaintiffs' Motion for Attorneys' Fees See Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV467528	<i>Erdan Liu, et al.</i> <i>v.</i> <i>El Patron Demolition, Inc.</i>	Order on Petitioners' Motion to Remove Mechanics Lien See Line 7 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 8	25CV480145	<i>Theo Van Buren</i> <i>v.</i> <i>Bill Holdings Inc., et al.</i>	Order on Defendants' Motion to Set Aside Entries of Default and For Leave to File a Demurrer to Plaintiff's Complaint See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 <u>9</u>			
9:00 <u>10</u>			
9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Adedayo Abioye (“Plaintiff”) moves under Code of Civil Procedure Sections 438 for Judgment on the Pleadings in favor of Plaintiff and against Defendants Abraham Chapa and Vortex Industries, LLC (“Defendant”) on the grounds that:

1. The Complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. C.C.P. § 438(c)(1)(A).
2. The Defendants’ Answer is false, improper, irrelevant and was not filed in conformation with California law. C.C.P. §§ 435, 436.

Notice of Motion (the “Motion”) at 1:22-2:13 (filed: Aug. 6, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Fact Allegations

On June 26, 2025, Plaintiff’s vehicle was struck by Abraham Chapa while driving as an employee in a vehicle for Vortex. At the scene of the collision, Mr. Chapa admitted to being distracted by a biker and did not see Plaintiff’s vehicle. (Complaint ¶¶ 12, 13)

As a result of the collision, Plaintiff’s vehicle was a total loss and he suffered injuries to his neck, back, and head. Plaintiff also suffered emotional and mental distress. Defendants’ insurance company communicated their willingness to compensate Plaintiff for his injuries, but have not done so. (Complaint ¶¶ 15, 17)

Plaintiff initiated this action on September 9, 2025, alleging causes of action for negligence and negligent infliction of emotional distress. On July 10, 2026, the Court sustained Defendants’ demurrer to Plaintiff’s cause of action for negligent infliction of emotional distress without leave to amend.

II. Legal Standards

“A motion for judgment on the pleadings serves the function of a demurrer,

challenging only defects on the face of the complaint. As with a demurrer, the grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.” (*Eckler v. Neutrogena* (2015) 238 Cal.App.4th 433, 439, internal quotes and citations omitted; Code Civ. Proc., § 438, subd. (d).) “Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (*Sykora v. State Dept. of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534; *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063.)

A trial court’s determination of a motion for judgment on the pleadings accepts as true the pleading’s factual allegations, and it gives them a liberal construction. (See, *Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 190-191 [while allegations of a complaint must be accepted as true for purposes of a demurrer, the facts appearing in exhibits attached to the complaint will also be accepted as true, and, if contrary to the allegations in the pleading, will be given precedence].)

Although the trial court must accept as true all material facts properly pleaded, it “does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed. [Citation.]” (*Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.* (2006) 138 Cal.App.4th 1215, 1219.)

III. Preliminary Consideration

In support of his motion, Plaintiff submits his amended Declaration whereby he disputes the facts and affirmative defenses Defendants have raised in their answer. Defendants object to consideration of this Declaration in their opposition.

The Court will not consider Plaintiff’s Declaration for the following reasons:

1. The statements in the declaration do not appear on the face of the challenged pleading and are not subject to judicial notice. As such, the Declaration contains improper extrinsic evidence that the Court cannot consider in evaluating this motion.
2. Plaintiff’s Declaration is an improper means of challenging the legal sufficiency of the facts that are raised in the answer.

IV. Judicial Notice

Plaintiff seeks judicial notice of the following:

- Exhibit A – Plaintiff’s complaint filed in this case on September 9, 2025;
- Exhibit B – Proofs of service of summons filed in this case on September 19, 2025, and September 25, 2025;
- Exhibit C – Plaintiff’s request for entry of default filed in this case on July 21, 2026;

- Exhibit D - Defendants' opposition to Plaintiff's ex-parte application for an order shortening the time for the hearing on Plaintiff's motion for judgment on the pleadings and supporting declarations, filed in this case on July 17, 2026;
- Exhibit E – the Court's minute order filed on July 10, 2026, regarding Defendants' demurrer and motion to strike.
Plaintiff's Request for Judicial Notice as to Exhibits A-E is **GRANTED IN PART**.

Under Evidence Code Section 452 and 453, the Court can and does here take judicial notice of the *existence* of these judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments—but cannot and does not take judicial notice of the truth of hearsay statements in decision or court files, including pleadings, testimony, or statements of fact. (See, *Williams v. Wraxall* (1995) 33 Cal. App. 4th 120, 130, fn. 7, citing *Gilmore v. Superior Court* (1991) 230 Cal. App. 3d 416, 418.)

V. Analysis of Plaintiff's Motion for Judgment on the Pleadings

Defendants contend that Plaintiff's Motion fails since (1) it was filed prematurely, (2) it is procedurally defective due to Plaintiff's failure to meet and confer, (3) their verified answer defeats the motion as a matter of law, and (4) it cannot be used to strike their verified answer. (Opposition at 6:12-11:16)

Plaintiff contends his motion should be granted because: (1) Defendants' answer presents nothing to defeat the complaint and contains only false, defective, frivolous and irrelevant defenses; (2) Defendants' late filed answer should be stricken and a default entered against them; and (3) Defendants admitted fault at the accident scene and through their insurance company. (Motion at 6:5-10:26). But Plaintiff's arguments misapprehend the legal standard on a Motion for Judgment on the Pleadings, as the Court will now explain.

A. Plaintiff's Motion was filed prematurely.

Code of Civil Procedure section 438(f) provides that a plaintiff's motion for judgment on the pleadings may be brought only after the time for demur to the answer has expired. Under Code of Civil Procedure section 430.40, "a party who has filed a complaint or cross-complaint must file and serve a demurrer to an answer within 10 days after service of the answer." (Code. Civ. Proc. §430.40(b).)

Plaintiff filed his original motion for judgment on the pleadings on July 17, 2026, which was three days *before* Defendants' deadline to file their answer and five days before the answer was filed on July 22, 2026. Plaintiff amended his motion on August 6, 2026, three days after the time for a demurrer to the answer had lapsed. Both the original motion and the amended motion are based on the argument that Defendants' answer presents no viable defense.

Plaintiff's original Motion is clearly premature under Code of Civil Procedure

section 438(f). Even if the Court is to evaluate the timeliness of the motion based on the filing date of the amended motion – which was properly filed after the 10-day demurrer period lapsed – the Motion still fails for lack of merit.

B. Plaintiff failed to Meet and Confer in good faith with Defendants before filing this Motion.

Defendants contend that Plaintiff failed to properly meet and confer before filing the instant Amended Motion. According to Defendants’ declarations, after the demurrer hearing Plaintiff sent an email on July 11, 2026, requesting a telephonic meet-and-confer without explaining the basis for his contemplated motion. When defense counsel called Plaintiff on July 13, 2026, at his listed number, Plaintiff responded via text message stating, “[d]on’t contact my family, don’t contact me.” (Kim Decl., ¶¶ 11-13) No further meet-and-confer occurred before Plaintiff filed his second motion on July 17, 2026. (Kim Decl., ¶ 18; Ball Decl., ¶ 6)

Code of Civil Procedure section 439(a) requires the moving party to meet and confer in good faith with the opposing party prior to filing a motion for judgment on the pleadings. That did not happen here. However, as Defendants themselves note, failure or insufficiency of the meet and confer process does not provide grounds to grant or deny the motion. (See Code. Civ. Proc. § 439(a)(4).)

Nonetheless, Plaintiff is now on notice that a good faith meet and confer is generally required prior to filing of *any* motion. The failure to do so in this instance may be taken into consideration in any future request for sanctions if there is a repeated failure by Plaintiff to follow this rule.

C. Plaintiff’s Request for Default and to Strike the Answer is Denied.

Plaintiff argues that the court should strike Defendants’ answer as untimely and enter default judgment. But this argument fails because even a late-filed pleading serves to preclude the taking of default; default is only considered “entered” once the court clerk has signed the entry. The court clerk rejected Plaintiff’s July 21, 2026, request for entry of default due to filing defects. Defendants’ answer was filed on July 22, 2026, before any default was entered. The Answer therefore defeats any subsequent request for default. (See, *Heidary v. Yadollahi* (2002) 99 Cal. App. 4th 857, 863)

Furthermore, Plaintiff’s motion is denominated as a motion for judgment on the pleadings under Code of Civil Procedure section 438, not a motion to strike under section 436. While section 436 authorizes the court to strike pleadings not filed in conformity with law, Plaintiff has not established that the two-day delay warrants the drastic remedy of striking the Answer. Courts exercise discretion in determining whether to strike late-filed pleadings; here, the Court considers that Defendants have been actively participating in the litigation, including successfully demurring to one cause of action.

Taking all these facts and circumstances into account, and in the broad exercise of its discretion, the Court **DENIES** Plaintiff’s request for default and to strike the Answer.

D. Defendants' Answer raises issues of material fact that cannot be resolved on the pleadings.

Motions by a plaintiff for judgment on the pleadings are the equivalent of a demurrer to an answer. As such, the Court will assume the truth of all facts properly pleaded in the Answer and will disregard the controverted allegations of the Complaint. Such a motion must be denied if the defendant's pleadings raise a material issue or set up affirmative matter constituting a defense. (*Engine Manufacturers Assn. v. State Air Resources Bd.*, (2014) 231 Cal. App. 4th 1022, 1034; internal citation omitted.)

Here, Defendants' Verified Answer, filed July 22, 2026, denies essential elements of Plaintiff's negligence claim and therefore raises material factual issues that preclude judgment as a matter of law. The Answer specifically denies that Defendants were negligent, that Plaintiff was harmed as a result of any negligence, and that any alleged negligence was a substantial factor in causing Plaintiff's alleged harm. Defendants have not only denied liability but also factual allegations underlying Plaintiff's claim, including the extent of his injuries, whether Defendants' insurance company agreed to compensate him, and whether any such agreement created enforceable duties. (Answer at 2:5- 4:12) Those denials put at issue the core elements of negligence: duty, breach, causation, and damages. Under California law governing plaintiff motions for judgment on the pleadings, all factual allegations in the defendant's answer must be treated as true. (*Stella, supra*, 8 Cal.App.5th at 190-191.) Therefore, the Answer's denials create disputed facts that cannot be resolved at the pleading stage without evidence.

Beyond denying material allegations, Defendants assert 43 separate affirmative defenses in their answer. While not all 43 defenses may ultimately prove meritorious, several raise substantial legal and factual issues that cannot be resolved on the pleadings alone. For instance Defendants assert failure to mitigate damages (Seventh Affirmative Defense), waiver and estoppel (Eighth Affirmative Defense), and that the incident was an unavoidable accident (Sixteenth Affirmative Defense). Each of these defenses requires factual findings that cannot be made and resolved based solely on the pleadings.

Additional defenses include lack of standing (Sixth Affirmative Defense), lack of causation (Nineteenth Affirmative Defense), assumption of risk (Twenty-Second and Thirtieth Affirmative Defenses), and spoliation of evidence (Thirty-Fourth Affirmative Defense). While Plaintiff's Declaration attempts to dispute these defenses factually, the Court **DECLINES** to consider Plaintiff's Declaration for purposes of this Motion because Plaintiff's Declaration is improper extrinsic evidence.

Defendants also raise defenses specific to the employment context and vehicle operation, including that liability is limited under Vehicle Code sections 17150 and 17151 (Thirty-Sixth Affirmative Defense), that the driver was properly trained and licensed (Thirty-Fifth Affirmative Defense), and that Plaintiff may have violated Vehicle Code section 21955 (Forty-First Affirmative Defense). These statutory defenses involve mixed questions of law and fact requiring evidentiary development, which cannot be resolved on the pleadings.

Indeed, the California Court of Appeal has made clear that where the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted. (*Engine Manufacturers Assn., supra*, 231 Cal. App. 4th at 1034.).

Accordingly, for all these reasons, and in the broad exercise of its discretion, the Court **DENIES** Plaintiff's Motion for Judgment on the Pleadings.

VI. Conclusion & Order

Plaintiff Adedayo Abioye's Motion for Judgment on the Pleadings in favor of Plaintiff and against Defendants Abraham Chapa and Vortex Industries, LLC, is **DENIED**.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Richard Ledesma, et al. v. Kelly Primeau, et al.*

Case No.: 25CV480278

See ORDER above. (Under California Rule of Court 3.1322(b), the Court **CONTINUES** this Demurrer to December 4, 2026 at 9:00 AM in Department 16, where it will be heard at the same time as Cross-Defendant Ledesma’s Motion to Strike Portions of the First Amended Cross-Compliant, which also is hereby **ADVANCED** from its currently-set hearing date of March 24, 2027, to December 4, 2026 at 9:00 AM in Department 16. As the concurrently-filed Demurrer and Motion to Strike are required to be heard at the same time, they will both be heard on December 4, 2026 at 9:00 AM in Department 16. C.R.C. 3.1322(b).)

Line 3

Case Name: *Rina Panigrahy, et al. v. Archbishop Mitty High School, et al.*

Case No.: 25CV481631

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant City of San Jose (“City”) demurrers under Code of Civil Procedure Section 430.10(e) and 430.10(f) to the Complaint filed on December 11, 2025 by Plaintiffs Prina Panigrahy, Arunima Panigrahy, and Sapna Rao (“Plaintiffs”) on the grounds that the Complaint is uncertain and fails to state facts sufficient to constitute a cause of action against a public entity. Notice of Demurrer (the “Demurrer”) at 1:21-2:6 (filed: Jan. 27, 2026).

The Demurrer came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, Plaintiffs are homeowners residing on Forest View Drive in San Jose, directly adjacent to Archbishop Mitty High School (“Archbishop Mitty”). Archbishop Mitty is constructing a new soccer field score board that is approximately seventeen feet from Plaintiffs’ backyard fence. The proximity and visibility of such a large, illuminated structure can not only have a negative effect on nearby home values, it can also reduce privacy, disrupt residential character, and alter the view from the backyards. (Complaint, Exhibit A)

Plaintiffs initiate this action on December 11, 2025, alleging causes of action for (1) resulting damages from construction activities, (2) short term effects related to cleaning and inconvenience, and (3) long term effects related to effect on property value. (Complaint, PLD-C-001 ¶¶ 8, 9)

II. Legal Standard on Demurrer

“The party against whom Complaint or cross-Complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom Complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated

therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a Complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the Complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the Complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the Complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a Complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a Complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Under California law, even if a demurrer is sustained, leave to amend the Complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the Complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Analysis of the Demurrer

Defendant contends the Complaint is not viable because: (1) it is uncertain and unintelligible under Code of Civil Procedure section 430.10(f); (2) the City is immune from liability under Government Code section 815 because Plaintiffs fail to cite a statutory basis for recovery; and (3) Plaintiffs failed to allege compliance with the Government Claims Act’s claim-presentation requirements.

While Plaintiffs oppose the demurrer, they do not cite any legal authorities in the support of their arguments. California Rules of Court, rule 3.1113 requires a memorandum that “contain[s] a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (California Rules of Court, Rule 3.1113(b); emphasis

added.). Therefore, a party's failure to provide a memorandum as required by the Rule may be considered an "admission that the [opposition] is without merit and cause for its denial." (Cal. Rules of Court, Rule 3.1113(a), (b); *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 976.)

Setting Plaintiffs' non-compliance with rule 3.113 aside, Plaintiffs' Complaint is still subject to demurrer on three independent grounds:

1. The Complaint is uncertain and unintelligible
2. The City is immune from liability absent a statutory basis for recovery
3. Plaintiffs fail to allege compliance with the Government Claims Act

A. The Complaint is Uncertain and Unintelligible

California Rules of Court, rule 2.112 requires that each separately stated cause of action or count specifically state its number (e.g., first cause of action), its nature, the party asserting it, and the party/parties to who it is directed at. .” (Rules of Court, rule 2.112.)

Code of Civil Procedure section 425.10 requires a Complaint to contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code. Civ. Proc. § 425.10(a).)

Plaintiffs' Complaint violates both Code of Civil Procedure section 425.10 and California Rules of Court, rule 2.112 by failing to delineate separate causes of action, identify which cause of action is directed against which defendant, or coherently reference any provision or principle of law that was allegedly violated.

The Complaint lists “[r]esulting damages from construction activities,” “[s]hort term effects related to cleaning and inconvenience,” and “[l]ong term effects related to new permanent structure next to homes and effect on property value” as causes of action. (Complaint, PLD-C-001, ¶¶ 8, 9) These describe a category of injury, not a legal theory of recovery. The one-page attachment enumerates various alleged harms—property value degradation, visual impact, privacy concerns, lack of notification, short-term construction effects—but never specifies whether these constitute claims for nuisance, inverse condemnation, constitutional violations, or violations of specific municipal code provisions. (Complaint, Exhibit A)

While demurrers for uncertainty are strictly construed and generally disfavored because ambiguities can be clarified through discovery, the uncertainty here goes beyond mere ambiguity. (See, *Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) The Complaint is so inadequately organized that the City cannot reasonably determine what legal claims it must defend against or which factual allegations apply to it as opposed to the Archbishop Mitty. Plaintiffs sue both a quasi-public school and a governmental entity, yet the Complaint contains no differentiation between claims against each defendant.

Although a Complaint can withstand a demurrer for uncertainty if it clearly sets forth the facts relied upon, Plaintiffs' Complaint fails even this lenient standard. The Complaint does not specify whether Plaintiffs allege the City negligently approved a permit, violated mandatory duties under municipal code, took property without compensation, or committed some other actionable wrong. The City is entitled to know the legal nature of the claims against it, not merely that Plaintiffs object to a construction project.

The opposition brief attempts to cure these deficiencies by identifying specific municipal code provisions governing signs and quasi-public land uses. (Opposition at 2:19-4:21) But these arguments cannot be considered on demurrer because they appear nowhere in the Complaint itself. To rule on a demurrer, the Court evaluates only the allegations in the pleading and all matters judicially noticeable, not arguments raised for the first time in opposition. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

B. The City is Immune from Liability Absent a Statutory Basis for Recovery

Even if the uncertainty defect was overlooked, the Complaint still remains unviable. Government Code section 815 provides that a public entity is not liable for any injury except as otherwise provided by statute. (Gov. Code § 815) Plaintiffs bear the burden of alleging a statutory basis for recovery, and their Complaint contains no such allegation.

Plaintiffs' opposition identifies number of San Jose Municipal Code provisions governing signs and setbacks. (Opposition at 2:19-4:21) But none of these provisions creates a private right of action or otherwise establishes a statutory basis for money damages against the City. Municipal code provisions regulating land use and permits generally establish standards for governmental decision-making; they do not automatically confer tort liability when a permit is issued that a neighbor believes violates the code.

To state a claim against the City, Plaintiffs must identify a statute that imposes liability on public entities for the type of injury alleged. For example, claims for dangerous conditions of public property are governed by Government Code sections 835; claims for injuries caused by public employees are governed by sections 815.2 and 820; and claims for mandatory duty violations are governed by section 815.6. Plaintiffs cite none of these statutes and do not explain how the alleged permit approval constitutes a dangerous condition, employee negligence, or breach of mandatory duty giving rise to liability.

Plaintiffs appear to contend that the City violated its own municipal code by approving the scoreboard permit without adequate consideration of neighbor impacts. (Opposition at 2:19-4:21) Even accepting this allegation as true, violation of a municipal code provision does not itself establish tort liability against the governmental entity absent a separate statutory basis for such liability. Government Code section 815 forecloses common-law tort liability against public entities; only statute-based claims are

cognizable.

The opposition's references sign regulations in Union City, Temple City, and Santa Cruz County are inapplicable. (Opposition at 4:1-21) These provisions govern different jurisdictions and do not establish that San Jose's Municipal Code creates a private damages remedy. Moreover, even if San Jose's sign code required aesthetic review or neighborhood notification, Plaintiffs have not pleaded any statute making the City liable in damages for alleged noncompliance with its own code.

C. Plaintiffs Fail to Allege Compliance with the Government Claims Act

"Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented...until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board. . . ." (Gov't. Code, § 945.4.)

A failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738.) A Complaint is subject to attack by demurrer if the plaintiff fails to include allegations that the plaintiff complied with the claims presentation requirement or that a recognized exception or excuse for noncompliance exists. (See *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 338.)

Plaintiffs' Complaint does not allege that they filed a claim with the City before filing suit. The Judicial Council form specifically asks whether the plaintiff is required to comply with claims statutes and whether the plaintiff has complied, but Plaintiffs left this section blank. The one-page attachment contains no allegation regarding claim presentation. (Complaint, PLD-C-001 ¶ 5; Exhibit A)

Plaintiffs' alleged injuries—property value diminution, aesthetic harm, privacy invasion, and construction-related disruption—do not fall within the statutory exceptions to the claims-presentation requirement enumerated in Government Code section 905. Therefore, without an allegation of compliance or excuse, the Complaint fails to state a claim subject to the Government Claims Act.

D. The Court Gives Plaintiff Leave to Amend Their Complaint Within 10 Days of Today to Try to Cure The Pleading Deficiencies Identified In this Order.

While it might be unlikely that Plaintiffs will be able to fix, through an amending pleading, the multiple pleading deficiencies discussed above in this Order, the Court does not find *at this point* that this Complaint shows on its face that it is *incapable* of amendment. So under the liberal amendment-of-pleadings standards of California law (*McDonald*, 180 Cal. App. 3d at 303-304, *supra*), the Court gives Plaintiffs **LEAVE** to file **within 10 days from today** a First Amended Complaint that tries to cure these defects

(if Plaintiffs choose to do so). And so, in the generous spirit of fairness and liberality of California law, the Court gives Plaintiffs this one full and fair chance to correct these defects.

IV. Conclusion & Order

Defendant's Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND WITHIN 10 DAYS OF TODAY.**

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *J.C. v. Watchtower Bible and Tract Society of New York, Inc., et al.*

Case No.: 22CV407932

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Watchtower Bible and Tract Society of New York, Inc. (“Watchtower”) moves under Code of Civil Procedure Section 437c for Summary Judgment against Plaintiff J.C. on the ground that Watchtower is entitled to summary judgment as a matter of law because Plaintiff cannot establish all of the elements of her Third Cause of Action for Negligence of Plaintiff’s Second Amended Complaint (“SAC”).¹ Notice of Motion (the “Motion”) at 2:4-11 (filed: Jan. 26, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff, J.C.,² brings this Second Amended Complaint (“SAC”) against Defendants Watchtower, West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”), Sean A. Mackey (“Mackey”), and Does 4 through 60 (collectively, “Defendants”) for incidents of childhood sexual assault perpetrated by Mackey against Plaintiff, while Plaintiff was a minor. (SAC, ¶¶ 1-2.)

Watchtower is a religious nonprofit corporation that supervised and exercised control over Plaintiff’s abuser, Mackey. (SAC, ¶¶ 6-7.) West Congregation (collectively with Watchtower, “Church Defendants”) is a nonprofit California corporation, owned, controlled, directed, and operated by Watchtower, which included the church, West Congregation, that Plaintiff attended and the property where the unlawful acts of childhood sexual assault occurred. (*Id.* at ¶ 11.)

Watchtower was responsible for finalizing the appointments of Elders and Ministerial Servants, including Mackey, from its headquarters in New York. (SAC, ¶¶ 7-8, 15.) The managing agents directing and setting the corporate policies of the Church Defendants was a group of individuals known as the “The Governing Body.” (*Id.* at ¶ 10(a).) The Governing Body established, approved, and disseminated all the

¹ The Third Cause of Action for Negligence is the *only* cause of action brought against Defendant Watchtower in the SAC.

² J.C. is not Plaintiff’s actual name, but a fictitious name used to protect her privacy. (See SAC, ¶ 5.)

administrative policies, procedures, and programs followed by all congregations on the subject of prevention and administrative response to acts of childhood sexual abuse committed by or upon its members, including childhood sexual abuse arising from or out of the activities of members of West Congregation. (*Id.* at ¶ 10(c).)

In or around 1989, Plaintiff was sexually assaulted and/or sexually abused, and molested by Church Defendants' employee and/or agent Mackey. (SAC, ¶ 27.) Mackey sexually assaulted and/or abused Plaintiff on multiple occasions by use of the trust, position, and authority he held as a fellow member, agent, and leader of West Congregation. (*Id.* at ¶ 28.) Plaintiff would attend church sponsored events at her home, as mandated by Defendants. (*Id.* at ¶ 29.) Mackey would attend these church-sponsored events and singled Plaintiff out with the intention of grooming her for inappropriate and eventual sexual assault and abuse. (*Id.* at ¶ 30.) During these church-sponsored events, Mackey would place a blanket over himself and Plaintiff and sexually abuse and/or assault her when she was only seven years old. (*Id.* at ¶ 31.) Watchtower's policies separated parents, including Plaintiff's parents, from the youth attending these events and classes, even when the events occurred in the parents' home. (*Id.* at ¶¶ 32, 33.) Mackey's sexual assault, abuse, and molestation was "done in full view of Church Defendants' Elders, ministerial servants, and congregation members." (*Id.* at ¶ 34.)

Plaintiff was sexually assaulted, abused, and molested countless times by Mackey at Church Defendants' events over a span of a few months in 1989. (SAC, ¶ 35.) Mackey also sexually assaulted, abused, and/or molested Plaintiff's minor brother and cousin prior to abusing Plaintiff. (*Id.* at ¶ 36.) Plaintiff's parents reported the sexual assault, abuse, and molestation of Plaintiff by Mackey to Church Defendants' Elders at West Congregation. (*Id.* at ¶ 37.) However, Church Defendants' Elders attempted to conceal and cover up Mackey's sexual assaults by instructing Plaintiff's parents not to report the assault to the police, but failed to take any action against Mackey. (*Ibid.*) Plaintiff's parents then reported the assault to the police, and the Church Defendants still failed to take action against Mackey. (*Id.* at ¶ 38.)

Before, during, and after Mackey's sexual assault and/or sexual abuse, and molestation of Plaintiff, Church Defendants, "through their agents and Elders knew that Mackey's conduct and relationship with minor children, including Plaintiff, was inappropriate, unlawful, wrongful, and/or otherwise created a risk of childhood sexual assault." (SAC, ¶ 39.) Plaintiff is informed and believes that Church Defendants maintained, and still maintain, a database from Watchtower's congregation, including West Congregation, regarding Mackey's prior abuse of Plaintiff, but their policies forbid dissemination of prior reports. (*Id.* at ¶ 40.) Elders at West Congregation confirmed that Mackey inappropriately touched, sexually assaulted and/or sexually abused and molested other children, including Plaintiff, but purposely failed to: notify or warn members and parents of the risk of sexual abuse by Mackey; limit or supervise Mackey's access to children; and notify law enforcement. (*Id.* at ¶¶ 42-44.) As a result, Mackey was able to continue his sexual assaults and/or abuse and molestation of Plaintiff and remained in good standing at West Congregation. (*Id.* at ¶¶ 45, 47(a).)

On July 12, 2024, Plaintiff filed the operative SAC against Defendants, asserting the following causes of action:

- 1) Sexual Assault of a Minor [against Mackey];
- 2) Intentional Infliction of Emotional Distress [against Mackey];
- 3) Negligent Hiring, Supervision, and Retention [against Defendants];
- 4) Negligence [against Does 4 through 60].

On January 26, 2026, Watchtower filed this Motion for Summary Judgment of the SAC's Third Cause of Action.³ No opposition was filed in response to the Motion.

On August 21, 2026, Watchtower filed a reply indicating that no opposition was filed by Plaintiff. As a result, the Court treats the Motion as unopposed declines to grant on that basis alone. In accordance with the strong policy of California law to decide matters on their merits, the Court will analyze whether Watchtower has met its burden for summary judgment.

Legal Standard on Motion for Summary Judgment

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while

³ As noted above, this Third Cause of Action is the *only* claim brought against Watchtower.

the opposing party's evidence is liberally construed. (*Id.* at p. 843.)

Analysis of the Motion for Summary Judgment

I. Watchtower has met its burden of showing that there is no triable issue of material fact that Watchtower owed any duty to Plaintiff.

The Third Cause of Action makes the following allegations against Watchtower:

- 1) a special relationship existed between Watchtower and Mackey because he was an agent of Watchtower and Watchtower had the ability to control his conduct (SAC, ¶ 70);
- 2) Watchtower was negligent in its supervision of Mackey and failed to warn Plaintiff of the risk that Mackey would sexually assault children (SAC, ¶ 71); and
- 3) Watchtower failed to exercise reasonable care and failed to notify law enforcement of abuse (SAC, ¶¶ 71-72).

Thus, the claim depends upon the existence of a special relationship between Watchtower and Mackey or Watchtower and Plaintiff. (E.g., *Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal.App.4th 1214, 1227 [“where the issue is whether the defendant had a duty to protect the plaintiff from harm caused by a third party, the absence of a special relationship is dispositive”].)

“A special relationship between the defendant and the victim is one that gives the victim a right to expect protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that entails an ability to control the third party's conduct. . . . The common features of a special relationship include an aspect of dependency in which one party relies to some degree on the other for protection and the other party has superior control over the means of protection. . . . California courts have frequently recognized special relationships between . . . a church and minor members engaged in church-sponsored field service[.]” (*Doe v. Roman Catholic Archbishop of Los Angeles* (2021) 70 Cal.App.5th 657, 670-671 [internal citations and quotations omitted].)

Watchtower argues it is entitled to summary judgment on the Third Cause of Action because it was *not* in a special relationship with either Mackey or Plaintiff and therefore owed no duty to Plaintiff. (Motion, p. 9:20-21.) In support, Watchtower proffers the Declaration of Joel Taylor (“Taylor”). Taylor states he has personal knowledge of the facts and is the Associate General Counsel of Watchtower and an elder of Jehovah's Witnesses. (Taylor Decl., ¶¶ 1-3.) Taylor states that neither Plaintiff nor Mackey were members of Watchtower. (UMFs 3-4 [Taylor Decl., ¶ 5].) Taylor further asserts that on the dates of the sexual assault, Watchtower had no local offices in California, did not own any Kingdom Halls or congregations of Jehovah's Witnesses, and did not supervise the day-to-day activities of local congregations of Jehovah's Witnesses in California. (UMF 5 [Taylor Decl., ¶ 6]; see also Taylor Decl., ¶¶ 11, 13.) Further, Taylor contends that West

Congregation is locally operated and overseen by elders and Watchtower has no elders of its own and never had elders or parishioners. (UMF 13 [Taylor Decl., ¶ 7].) Finally, Taylor states that after a diligent search, Watchtower has no record of Mackey ever being an employee, volunteer, or agent of Watchtower. (Taylor Decl., ¶ 18.)

Based on the foregoing, Watchtower has proffered sufficient evidence to show that no special relationship existed between it and Plaintiff or Mackey and as a result, Watchtower did not owe a duty of care to Plaintiff. (See *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 877 [“Absent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention, or supervision of a fellow employee.”]; *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1149-1150 [“The existence of a duty depends upon the foreseeability of the risk . . .”].)

Accordingly, Watchtower meets its burden of establishing there is no triable issue of material fact as to duty. As noted above, Plaintiff has not opposed the Motion. As such, Watchtower’s Motion for summary judgment is **GRANTED** in its entirety.⁴

Conclusion & Order

Defendant Watchtower Bible and Tract Society of New York, Inc.’s Motion for Summary Judgment under Code of Civil Procedure Section 437c is **GRANTED** in favor of Watchtower Bible and Tract Society of New York, Inc., and against Plaintiff J.C.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁴ Given the Court’s ruling Granting Summary Judgment in favor of Watchtower, the Court need not and does not reach any remaining arguments raised by Watchtower.

Line 5

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)

Line 6

Case Name: *Michael Ramos-Mauro, et al. v. General Motors LLC, et al.*

Case No.: 25CV462049

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Michael Ramos-Mauro and Michael Alexander Ramos Us (“Plaintiffs”) move under Code of Civil Procedure Section 1794(d) and the accepted Release and Settlement Agreement signed on October 1, 2025 (“Settlement Agreement”) for Defendant General Motors LLC (“GM” or Defendant”) to pay Plaintiffs’ reasonable fees, costs, and expenses as the prevailing party in this case in the amount of \$15,957.94, which equals attorneys’ fees sought of \$15,130.00 plus costs sought of \$827.94. Notice of Motion (the “Motion”) at 1:24-2:13 (filed: Jan. 14, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On January 5, 2022, Plaintiffs purchased a new 2022 Chevrolet Silverado from Stevens Creek Chevrolet. The vehicle was covered by GM’s express warranty, including a three-year/36,000-mile basic warranty and a five-year/60,000-mile powertrain warranty.

Plaintiffs experienced defects and nonconformities with the vehicle, including transmission failure, failure of the vehicle to turn on, and illumination of the check engine warning light. These defects were reported to GM and authorized repair facilities, including Stevens Creek Chevrolet, for warranty repairs. Plaintiffs underwent approximately nine repair visits with a total of approximately 103 days of downtime.

Plaintiffs filed their Complaint in this court on March 26, 2025, against GM, Stevens Creek Chevrolet, and Does 1–50, bringing Song-Beverly Consumer Warranty Act claims against GM.

Defendants answered with a general denial on May 14, 2025.

The parties exchanged statutory initial disclosures and engaged in limited discovery. This case did not involve depositions, vehicle inspection, contested law-and-motion practice, expert discovery, or trial preparation.

Mediation occurred on September 5, 2025, during which GM made a settlement offer to repurchase Plaintiffs’ vehicle for \$27,500, and Plaintiffs accepted. A written

settlement agreement was executed on October 22, 2025, providing for the \$27,500 repurchase payment with attorney's fees and costs reasonably incurred by Plaintiff to be determined by noticed motion if the parties could not agree. The settlement agreement states that Defendant agrees Plaintiff is the prevailing party for purposes of this motion.

On January 14, 2026, Plaintiffs filed this Motion for Attorney's Fees against GM only, seeking attorneys' fees under Civil Code section 1794(d). Plaintiffs concurrently filed a Memorandum of Costs seeking \$827.94 in costs.

GM filed its Opposition on August 21, 2026, and Plaintiffs filed a Reply on August 26, 2026.

II. Legal Standard

Civil Code Section 1794(d) provides that if the buyer prevails in an action under the Song-Beverly Consumer Warranty Act, the buyer shall recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably* incurred by the buyer in connection with the commencement and prosecution of such action. The statute's fee-shifting provision is mandatory once prevailing-party status is established.

In determining the amount of Plaintiff's reasonable attorneys' fees, which is within its broad discretion, the Court analyzes the fees sought under the lodestar method. The Court first determines the number of hours reasonably expended on the litigation and multiplies that figure by a reasonable hourly rate. The reasonable hourly rate is the prevailing rate in the relevant community for comparable legal services, specifically here the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. After fixing the lodestar, the court may, in its discretion, apply a positive or negative multiplier based on factors including novelty and difficulty, skill displayed, preclusion of other employment, and contingency risk, but any multiplier must rest on factors not already subsumed in the lodestar calculation.

The fee claimant bears the burden of showing the requested rates were reasonably necessary and reasonable in amount. Counsel declarations describing hours worked and tasks performed are sufficient to make a prima facie showing; once that showing is made, the opponent bears the burden of identifying specific defects in the billing with particularity. The Court must independently exclude hours that are excessive, redundant, padded, vague, or otherwise unnecessary.

III. Analysis of the Motion

A. Plaintiffs are the prevailing party entitled to recover attorneys' fees from GM under Civil Code Section 1794(d)

Because the parties stipulated to it in the settlement agreement, Plaintiffs are the prevailing-party in this Song-Beverly Act case. The settlement agreement contains GM's express acknowledgment that Plaintiffs are the prevailing party for purposes of this fee

motion. Accordingly, the Court finds that this contractual acknowledgment establishes Plaintiffs' prevailing-party status here for purposes of this Motion.

B. The Motion is timely.

Plaintiffs filed the Motion on January 14, 2026, following the October 22, 2025 written settlement agreement and subsequent settlement-related proceedings. Cal. Rules of Court, rule 3.1702 requires that a fee motion be filed within the time for filing a notice of appeal, measured from entry of judgment or dismissal or service of notice of entry. The settlement date does not itself start the clock. The papers reference a January 12, 2026 declaration concerning an order to show cause regarding dismissal based on settlement, indicating the dismissal process was pending immediately before the motion was filed. Here, no final dismissal had been entered at the time of filing of the Motion, and as the settlement agreement expressly reserved jurisdiction for the fee determination by noticed motion. Under these circumstances, the Motion is timely.

C. Analysis of Reasonableness of Hourly Rates Sought

The parties do dispute the proper hourly rates for Plaintiffs' Attorney Christopher Urner, Attorney Jorge L. Acosta, and Paralegal Mary M. Zazueta. Plaintiffs seek rates of \$525/hour for Urner, \$450/hour for Acosta, and \$250/hour for Zazueta. GM proposes substitute rates of \$350/hour for Urner, \$250/hour for Acosta, and \$100/hour for Zazueta, arguing that Plaintiffs failed to establish prevailing local rates for comparable noncontingent legal services and that this case was routine and settled early.

1. Governing Standard and Burden of Proof

The governing benchmark is the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. The relevant community is the locality where this Court sits, Santa Clara County. The fee claimant bears the burden of showing that the requested rates were reasonably necessary and reasonable in amount.

Plaintiffs' evidence demonstrates that all the cases at Plaintiffs' counsel's firm, The Lemon Pros, LLP, are accepted on a contingency basis and that the firm bills Urner's time at \$525.00/hour for all contingency lemon law work. This establishes what the firm charges in contingency matters, but *not* what the local market pays for comparable noncontingent Song-Beverly or consumer-warranty litigation. The circumstance that Song-Beverly practice is commonly structured on a contingency basis does not alter the governing legal benchmark. Contingency risk and delay in payment are factors that may support a lodestar multiplier, but they may not be embedded into the base hourly rate. The Court must apply the noncontingent-market-rate benchmark.

2. Plaintiffs' Market-Rate Evidence

Plaintiffs have satisfied their burden of submitting evidence through multiple methods, even though the evidence has its limitations as the Court will now discuss.

Plaintiffs benchmarked their rates against the Laffey Matrix as adjusted for the Santa Clara locality pay differential, showing that the rates charged by the firm are below the contingency rates reflected in the Laffey Matrix as adjusted for the Santa Clara locality pay differential. So Plaintiffs argue that their rates sought are not inflated to reflect contingency risk, and do not already subsume a contingency premium

But the Laffey Matrix is not a conclusive proxy for local market rates and may be discounted where it does not reliably measure the relevant local market for comparable work. The Laffey showing as presented is a geographically derivative proxy based on adjustments to Washington D.C./Baltimore area rates. It does not directly measure the relevant Santa Clara County market for comparable noncontingent lemon-law or consumer-warranty work. So the Court gives it limited rather than dispositive weight.

Plaintiffs also referenced the Burdge United States Consumer Law Attorney Fee Survey (2017–2018), adjusted for inflation, showing average California attorney rates and 75th-percentile median rates after inflation adjustment. While the Burdge material is statewide and consumer-law oriented, it does not isolate the local market where this court sits and does not specifically establish rates for comparable noncontingent litigation in Santa Clara County. While it supports the general proposition that consumer-law rates in California can exceed the figures claimed here, it is not strong proof that the exact rates requested are the prevailing local noncontingent rates for this case.

In their reply papers, Plaintiffs identified evidence from comparable Santa Clara and San Mateo area consumer-warranty cases in which other superior court judges had previously approved similar or higher rates for these same attorneys or for other consumer-warranty counsel. These comparators were introduced for the first time in Plaintiffs' reply, without fair opportunity for GM to investigate or test them. Reply evidence first offered with the reply should be considered only with caution. The Court therefore accords these prior-ruling comparisons minimal corroborative weight. Even considered on the merits, they show only that other judges on other records approved similar or higher rates; they do not independently prove that these rates satisfy the governing noncontingent benchmark on this record.

3. Case Simplicity and Calibration of Rates

Case simplicity is not categorically confined to the hours analysis. This Court has broad discretion under California law to set a lower reasonable hourly rate where the matter is routine or straightforward and the record supports that conclusion. A reduction in requested rates after early settlement may also be upheld where supported by the record. At the same time, the court may not embed classic multiplier factors such as contingency risk, public interest, or unusual difficulty into the base hourly rate.

The record here shows that this is routine Song-Beverly case. Mediation occurred approximately five and a half months after the March 26, 2025 filing. The billing records reflect no depositions, no vehicle inspection, no contested law-and-motion practice, and no expert discovery. Settlement was reached for \$27,500 on repurchase terms. These circumstances support some downward calibration of the hourly rates to reflect the

routine nature of the work actually performed.

The reasonable rate may also be adjusted at the task level when higher-billing lawyers perform work that should reasonably have been delegated to lower-billing attorneys or staff, because the relevant rate is the community rate for the work actually performed. Conversely, the court cannot pick substitute rates arbitrarily; a reduction unsupported by the record is an abuse of discretion.

Taking all these facts and circumstances into account, and in the broad exercise of its discretion, the Court finds that GM's proposed reduced rates of \$250/hour for Acosta, \$350/hour for Urner, and \$100/hour for Zazueta are unsupported by market evidence in the record and cannot simply be adopted as urged.

4. The Court's findings on Reasonable Rates for Plaintiffs' Individual Attorneys in this case.

Attorney Jorge L. Acosta: \$375/hour. Plaintiffs' requested \$450/hour for Acosta is not adequately supported as the prevailing local noncontingent rate. Acosta has been directly involved in the active litigation of Song-Beverly cases as a paralegal since 2018 and worked for three years at Beatty & Myers, LLP as a law clerk directly assisting in the defense litigation of hundreds of Song-Beverly cases. Acosta completed law school in 2022 and then passed the California Bar exam in 2023 and became a partner of the firm in 2024. The record shows that from the time he was admitted to the California Bar in 2023 through 2024, his hourly rate was \$350/hour and his current hourly rate of \$450/hour has been in effect since January 2025

Acosta's background is stronger than that of a typical second-year attorney because of his pre-admission Song-Beverly experience. But the record reflects only about two years of post-admission attorney experience during this case. On the one hand, the jump from \$350/hour to \$450/hour in one year is not well anchored to local noncontingent market evidence. Given the limitations in Plaintiffs' evidence and the case's routine profile, \$450 is high. On the other hand, GM's proposed \$250 is unsupported and too low for a lawyer with Acosta's Song-Beverly-specific experience.

Acosta performed case intake, client-agreement drafting, analysis of service records and purchase documents, pre-filing legal research including class-action research, post-filing NHTSA/TSB research, drafting of repair chronology, review of GM's document productions, review and revision of Plaintiffs' initial disclosures, drafting of mediation brief, client communications regarding settlement authority, drafting of the fee motion and supporting declaration, and attended the mediation. Legal research, mediation work, and fee-motion drafting justify an attorney rate. But intake, agreement drafting, chronology assembly, and some document review are closer to lower-level associate or paralegal work—categories that reinforce use of a reduced attorney rate rather than the full claimed \$450.

Considering all these facts and circumstances, and in the broad exercise of its discretion, the Court finds that an hourly rate of **\$375/hour** for attorney Acosta is

reasonable in this case, accounting for both Acosta's Song-Beverly-specific experience and the routine, delegable character of portions of the work performed, and avoids arbitrary adoption of GM's proposed lower rate.

Attorney Christopher Urner: \$475/hour: The requested \$525/hour for Urner is supported by a materially stronger experience profile. Urner has five years (2017 to 2022) of direct litigation experience handling lemon-law cases from inception through trial with The Altman Law Group before joining The Lemon Pros, LLP. He has litigated hundreds of lemon-law cases for aggrieved consumers and has actively participated in the litigation and trial preparation of several high-profile lemon-law cases. An attorney with roughly nine years of focused lemon-law experience could reasonably command a rate above Acosta's and above many general civil litigators in this field.

The difficulty is not Urner's background; it is the work he actually performed in *this* case. The billing shows Urner performed pre-filing file review, legal analysis and drafting of memorandum, review and revision of the Complaint, review of the Civil Case Cover Sheet, and estimated future work on the opposition, reply, and hearing. Except for pre-filing legal review, that work is largely supervisory or routine. Complaint revision and cover-sheet review are not the kind of high-skill, high-complexity tasks that strongly support the top end of market rates in a simple case that settled before significant litigation activity. Review and revision of a complaint may properly involve a senior lawyer, but review of a civil cover sheet and some pre-filing memorandum work could have been handled at a lower rate or by Acosta.

Because the record does not break those entries out in a way that allows precise task-by-task repricing, a reduced overall reasonable rate for Urner better reflects both his substantial specialized experience and the routine, lightly staffed work he performed here.

Considering all these facts and circumstances, and in the broad exercise of its discretion, the Court finds that an hourly rate of **\$475/hour** for attorney Urner is reasonable in this case, and avoids the arbitrary nature of GM's proposed lower rate.

Paralegal Mary M. Zazueta—\$175/hour: The requested \$250/hour for Zazueta is not adequately supported as the prevailing local rate for paralegal work in a straightforward Song-Beverly case. Zazueta is the lead paralegal at The Lemon Pros, LLP, with approximately seven years of experience in the legal field, including extensive experience in consumer litigation under the Song-Beverly Consumer Warranty Act. Her duties include case management, calendaring deadlines, preparing initial discovery, drafting routine legal documents, supporting attorneys throughout all phases of litigation, and training and overseeing new paralegals.

The tasks Zazueta performed here were client communications, Carfax research, review and indexing of GM's document productions, and drafting of Plaintiffs' initial disclosures and document production. Those are appropriate paralegal tasks, but they are routine paralegal tasks in a simple case. On this record, \$250 is too high. But GM's proposed \$100 rate is too low for an experienced consumer-litigation paralegal.

Considering all these facts and circumstances, and in the broad exercise of its discretion, the Court finds that an hourly rate of **\$175/hour** for paralegal Zazueta is reasonable in this case, better reflecting both her experience and the routine nature of the work performed.

D. Analysis of Reasonableness of Number of Hours Sought

Plaintiffs claim 37.4 compensable hours following adjustment of the original estimate for fee-motion work. GM challenges both the aggregate hours and several specific time-entry categories.

1. Prima Facie Showing and Burden

Plaintiffs made the required prima facie showing through declarations that they reviewed each billing record and believe them to be an accurate record of the work completed, through the office's practice of recording time and task descriptions contemporaneously into the electronic case file, and through representation that counsel reviewed records to remove redundant billing and any non-essential clerical items. The burden therefore shifted to GM to identify specific defects with particularity.

GM's memorandum preserved entry-specific objections to ten challenged entries and to the anticipated fee-motion estimate. GM's broader assertions that many attorney entries were boilerplate, should have been done by paralegals, or that many 0.2-hour entries should have been cut appear to lean heavily on entries highlighted by defense counsel in Exhibit A of the Declaration of (defense attorney) William H. Heikkinen, rather than on developed memorandum argument. Cal. Rules of Court, rule 3.1113 requires legal argument to be made in the memorandum, not embedded in Declaration exhibits. The Court therefore gives the Heikkinen highlighting only limited weight as a record pointer and not as a substitute for developed argument. Hence, the Court addresses the specific entries GM challenged with particularity in its memorandum.

2. Prefiling and Early-Case Investigation

The prefiling and early-case investigation entries were reasonably incurred and are allowed in full.

The February 17, 2025 entry for 0.9 hours to analyze service records from the client, draft notes, and prepare the file is reasonably related to commencement of the action. Plaintiffs' record shows that before filing the Complaint, counsel performed work analyzing Plaintiffs' repair orders, speaking with Plaintiffs, and researching whether Plaintiffs' complaints may be representative of similar complaints by other model owners. Nothing about 0.9 hours for review and note preparation is facially excessive. Prefiling investigation, including repair-record review, is compensable if reasonably incurred in connection with commencing the action. And this was reasonably incurred.

The April 2, 2025 entry for 1.5 hours to review other owner complaints through NHTSA and evaluate technical service bulletins and campaigns by GM for vehicles of the

same year, make, and model is likewise compensable. Plaintiffs show that this work provides TLP with an assessment of the value of Plaintiffs' claims and is particularly necessary when evaluating the veracity and completeness of discovery production by GM. GM's characterization of the case as run-of-the-mill does not undermine the specific nexus of this research to valuation and later document review. A generalized contention that a lemon-law case was simple does not itself establish that specific early-investigation entries were unreasonable.

The April 2, 2025 entry for 1.6 hours to draft a repair chronology is reasonably incurred. A repair chronology is a standard analytic tool derived from the repair history and directly tied to both pleading and case evaluation. The time claimed is not excessive on its face for assembling that chronology from the service record.

3. Same-Day Attorney Entries (March 26, 2025)

The March 26, 2025 same-day Acosta and Urner entries do not reflect impermissible duplication and are allowed in full.

Acosta billed 0.5 hours for legal research regarding possible applicable class-action lawsuits and drafting a memorandum regarding same. Urner billed 1.4 hours for review and analysis of the file and drafting a memorandum. On this record, the tasks are not the same basic task billed twice. Acosta's recorded task is specifically narrowed to possible class-action implications, while Urner's described work is broader legal-claims analysis and file review. The entries overlap in source materials, but overlap alone does not establish impermissible duplication where one attorney performs targeted research and another performs broader supervisory or strategic analysis. Same-day billing by multiple timekeepers is reducible if both billed the same basic task, but not every overlap is improper because supervision and independent analysis may add value. Any reduction for duplication must rest on a specific finding tied to the actual entries, not on assumption.

Nor is Acosta's 0.5-hour class-action research outside the nexus of this individual action. Plaintiffs' filing-stage work included researching whether Plaintiffs' claims may be representative of similar claims by other model owners, which ties that research to evaluation of this case. Given the very modest amount of time claimed and the distinct focus of the task descriptions, both the 0.5-hour Acosta entry and the 1.4-hour Urner entry are allowed in full.

4. Paralegal Production-Review Entries (July 16 and August 1)

The sequential paralegal production-review entries are allowed in full. The record shows separate entries on those same dates for two different productions: case analysis and review of GM's Initial Disclosure Document Production on July 16 and case analysis and review of GM's Protected Document Production on August 1. GM's premise that the later paralegal review covered the same materials is not established on this record. The descriptions identify different document sets on different dates, and nothing in the billing affirmatively shows overlap substantial enough to warrant a reduction. The 1.9-hour July

16 entry and the 0.9-hour August 1 entry are allowed.

5. Initial-Disclosure, Mediation-Brief, and Fee-Motion Drafting Entries

The remaining challenged merits-phase entries are reasonable in amount and are allowed in full.

Zazueta's August 4, 2025 entry for 1.7 hours to draft Plaintiffs' initial disclosures and prepare document production, together with Acosta's separate 0.8-hour entry to review and analyze the file and revise Plaintiffs' initial disclosures and document production, reflects an aggregate 2.5 hours for drafting, preparing, reviewing, and revising initial disclosures and accompanying production. This is reasonable and not excessive. The division of labor between paralegal drafting and attorney revision is appropriate.

The August 29, 2025 mediation-brief entry for 1.4 hours to review the file, repair history, and damages and draft Plaintiffs' confidential mediation brief is reasonable on its face. Its use is confirmed by the September 5, 2025 attendance at mediation. Time spent preparing and litigating the fee motion, including mediation-brief preparation, is compensable.

The January 13, 2026 fee-motion drafting entry for 1.4 hours is likewise reasonable and compensable. Fees on fees are recoverable.

6. Anticipated Fee-Motion Time

The billing statement sought four estimated future entries totaling 5.5 hours for reviewing opposition, drafting reply, preparing for hearing, and attending hearing. Urner later provided actual post-opposition time of 2.7 hours, specifically 0.3 hours to review opposition, 0.1 hours to review declaration and attachment, 1.9 hours drafting reply, 0.2 hours locating recent rulings, 0.2 hours drafting declaration, and 0.3 hours editing. Here, the Court finds that the actual 2.7 hours controls.

But that 2.7-hour actual total does not account for the separate estimated hearing-preparation and hearing-attendance components, each originally estimated at 1.0 hour. The original estimate included 1.0 hour to review the fee motion, case file, and records in preparation for hearing and 1.0 hour for attending the hearing on the fee motion. These remain facially reasonable on this record, especially where a hearing was set for September 2, 2026. The court therefore allows **4.7 hours** for fee-motion work: 2.7 actual post-opposition hours plus 2.0 estimated hours for hearing preparation and attendance.

7. Conclusion on Reasonable Number of Hours Expended

All ten challenged merits entries are allowed. The only reduction to the claimed hours is the replacement of the original 5.5-hour future estimate with 4.7 hours consisting of 2.7 actual reply-related time plus 2.0 hours for hearing preparation and attendance for this work by Urner. Hence, after considering all the papers and the record, and in the

broad exercise of its discretion, the Court finds that **37.4 compensable hours** were reasonably incurred by Plaintiffs' counsel for the prosecution of this action and the fee motion.

E. The Court does not award any multiplier—positive or negative—in this routine case.

Plaintiffs request a positive 0.3 enhancement. GM requests a negative 0.3 adjustment. The Court denies both requests.

1. Fixed Lodestar Base

The lodestar must be fixed before any multiplier analysis. With the adjusted rates of \$375/hour for Acosta, \$475/hour for Urner, and \$175/hour for Zazueta, and 37.4 compensable hours, the lodestar is calculated as follows:

Urner: 6.4 hours × \$475/hour = \$3,040.00

Acosta: 18 hours × \$375/hour = \$6,750.00

Zazueta: 13 hours × \$175/hour = \$2,275.00

Total lodestar: \$12,065.00

3. Legal Standard for Multiplier

After the lodestar is fixed, the court may apply a positive or negative multiplier based on factors including novelty and difficulty, skill displayed, preclusion of other employment, and contingency risk. A multiplier ruling without a specified lodestar base is reversible error. Contingency risk and delay in payment are recognized grounds for an upward multiplier, and those grounds remain cognizable even where a fee-shifting statute is mandatory, although the mandatory statute reduces the force of the contingency rationale compared to an ordinary contingency matter. A positive multiplier is not automatic; the moving party must demonstrate that the lodestar does not adequately compensate for the risks or burdens of the representation, and the court must articulate its reasons for any enhancement.

California also permits a negative multiplier, but any downward adjustment must rest on a specific factor not already subsumed in the lodestar. Using the same simplicity or routine-practice concerns both to reduce hours or rates and then again to reduce the multiplier is impermissible double counting.

4. Plaintiffs' Positive-Multiplier Arguments

Plaintiffs showed that all cases at The Lemon Pros, LLP are accepted entirely on a contingency basis, that the firm fronts all costs of litigation on behalf of all legal complaints filed, and that if a case accepted is unsuccessful, the legal time and costs are not recouped. In this matter specifically, TLP agreed to represent Plaintiffs on a

contingency-only basis, and if the case was not ultimately successful, the firm accepted the risk of no recovery of any fees and costs advanced. Those facts establish real exposure to nonpayment in the ordinary sense.

A mandatory fee-shifting statute reduces but does not eliminate the contingency rationale. Civil Code section 1794(d) is such a statute. On these facts, the case was comparatively streamlined. The Complaint was filed on March 26, 2025, mediation occurred on September 5, 2025, a notice of settlement was drafted on September 10, 2025, and the work reflected no entries for depositions, expert work, or trial preparation. GM's characterization that the case was run-of-the-mill, settled at mediation within approximately six months, involved no depositions, no substantive motions, no expert discovery, and no trial preparation is materially supported by the procedural record. In that setting, the contingent nature of the representation supports *at most* a reduced enhancement rationale.

Delay in payment is a distinct basis for enhancement. Plaintiffs showed that every case filed, even if successful, results in a significant delay in time of a year or more between when legal work is performed and when the reasonable fees for the work are received, and that in this case specifically counsel advanced costs and performed work from January 2025 through January 2026 before any fee payment was received or agreed upon. That approximately one-year delay is meaningful enough to be cognizable as a distinct factor. Still, delay does not automatically require an enhancement. The question is whether that delay remains uncompensated by the base rates used in the lodestar.

5. The Double-Counting Problem

That leads to the disputed double-counting question. Plaintiffs rely on the assertion that the rates charged by the firm are below the contingency rates reflected in the Laffey Matrix as adjusted for the Santa Clara locality pay differential and that the rates are therefore not inflated to reflect contingency risk and do not already subsume a contingency premium. Plaintiffs bear the burden on a positive multiplier, and this record does not persuasively resolve the dispute in Plaintiffs' favor. Showing that the rates are below a Laffey-matrix figure does not, by itself, establish that they are the prevailing noncontingent market rates for comparable Song-Beverly work in the relevant community. A rate can be below one benchmark and still include some premium over what comparable noncontingent counsel would charge.

The burden here for a positive multiplier is Plaintiffs' burden. Because the Court cannot and does not find on this record that the fixed base rates exclude a contingency or delay premium, Plaintiffs have not carried their burden to show that a further upward multiplier would not double count factors already included in the lodestar.

The Court also considers the result obtained. Plaintiffs obtained GM's settlement offer to repurchase Plaintiffs' vehicle in the amount of \$27,500, and Plaintiffs accepted that offer. That outcome cannot justify a negative multiplier based on proportionality; the governing authorities forbid using the multiplier to tether fees to damages. But the favorable result also does not furnish a persuasive affirmative basis for a positive

multiplier here either. The settlement was beneficial, but on this record it is the kind of successful Song-Beverly resolution the lodestar is designed to compensate. There is no showing that the result was so extraordinary, or obtained through such exceptional skill not already captured in the reasonable rates and hours, that it warrants a separate enhancement.

Accordingly, the Court finds that Plaintiffs did not carry their burden to justify an upward multiplier, and so denies to award an upward multiplier.

6. GM's Negative-Multiplier Request

GM's request for a negative 0.3 multiplier fails because it points only to factors already considered at the lodestar stage. California permits a negative multiplier, but only for a specific factor not already subsumed in the lodestar. GM identifies only the case's brevity, routine nature, lack of depositions or experts, alleged boilerplate work, and lack of unusual skill, relying on assertions that the case was run-of-the-mill, settled at mediation within approximately six months, involved no depositions, no substantive motions, no expert discovery, no trial preparation, and required no special skill, and that TLP's work relied heavily on boilerplate templates, pleadings, and discovery.

Those are classic lodestar considerations. They bear on whether the hours were reasonably necessary and whether the hourly rates should reflect routine rather than specialized work. They are not analogous to recognized factors falling outside the lodestar calculus. As the Court here has already fixed reasonable hours and reasonable rates with those simplicity concerns in view, it cannot and will not impose a further negative multiplier for the same reasons. Accordingly, GM's negative-multiplier request is denied.

F. Analysis of the Reasonable Costs and Expenses Sought Under Civil Code Section 1794(d)

Here, Plaintiffs seek costs of \$827.94.

Plaintiffs are the prevailing buyers for purposes of Civil Code section 1794(d). The settlement preserved the issue of attorney's fees *and costs* reasonably incurred by Plaintiff for the Court. The \$827.94 in costs sought is well supported by the verified memorandum of costs. GM waived any objection by filing no motion to tax costs, raising no line-item challenge, and expressly stating it does not contest the \$827.94 memorandum.

Accordingly, the Court awards Plaintiffs **\$827.94** in costs and expenses.

IV. Conclusion & Order

Accordingly, in the broad exercise of its discretion, the Courts **GRANTS Plaintiffs' Motion In Part**. Specifically, the Court **ORDERS**:

Hourly Rates: The reasonable hourly rates here \$375 per hour for attorney Acosta, \$475 per hour for attorney Urner, and \$175 per hour for paralegal Zazueta.

Hours Expended: 37.4 hours were reasonably incurred by Plaintiffs' counsel here.

Lodestar Calculation:

Christopher Urner: 6.4 hours $\times$ \$475/hour = \$3,040.00

Jorge L. Acosta: 18 hours $\times$ \$375/hour = \$6,750.00

Mary M. Zazueta: 13 hours $\times$ \$175/hour = \$2,275.00

Lodestar subtotal: \$12,065.00

Multiplier: The court applies no multiplier, upward or downward.

Attorney Fees Award: \$12,065.00

Costs and Expenses Award: \$827.94

Total Award: \$12,892.94 (= \$12,065.00 + \$827.94).

GM shall pay this total award of **\$12,892.94** to Plaintiffs within thirty days of today.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Erdan Liu, et al. v. El Patron Demolition, Inc.*

Case No.: 25CV467528

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Petitioners Erdan Liu and Kyle Kai Kwong, Trustees of the Erdan Liu and Kyle Kai Kwong Joint Living Trust dated December 4, 2023 (“Petitioners”) move to remove the mechanics lien recorded by El Patron Demolition, Inc. (“Respondent”) on the real property located at 134 Beatric Street, Mountain View, California 94303, County of Santa Clara, Assessor’s Parcel No. 150-21-022 (the “Property”). Notice of Motion (the “Motion”) at 1:22-2:4 (filed: Dec. 9, 2025).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Procedural Posture

Petitioners are the owners of the Property. On or about November 27, 2024, a Mechanics Lien in the amount of \$56,000 was recorded against the Property in the Official Records of Santa Clara County, Document No. 25736581, by El Patron Demolition, Inc. (“Respondent”). The recorded lien claims the sum of \$56,000.00 together with interest thereon at the rate of 10.00 percent per annum from August 3, 2024, is due Respondent for excavation, hauling, and dump fees. The lien document states on its face that Respondent furnished the work and materials at the request of, or under contract with, Elk’s Construction, Inc., 7576 Peach Blossom Drive, Cupertino, CA 95014.

Petitioners’ counsel sent a written demand letter on May 15, 2025 via certified mail to Respondent El Patron Demolition, Inc. at its Stockton business address. The USPS eReceipt shows a First-Class Mail/Certified Mail item mailed from the 150 Sutter Street, San Francisco post office to Stockton, CA 95209, bearing Certified Mail Tracking No. 9589 0710 5270 1984 1456 09, at a total charge of \$5.58, with an estimated delivery date of Saturday, May 17, 2025. The demand letter identified the lien, demanded its release, and stated multiple grounds for its release, including that lien was recorded on November 27, 2024, and the deadline to file suit expired on February 25, 2025. No such action was filed or served and lack of contractual relationship. The demand required Respondent to execute and record a Release of Mechanics Lien with the Santa Clara County Recorder’s Office within 10 calendar days. After the deadline expired, Respondent failed to comply with the demand.

On June 13, 2025, Petitioners commenced this action by filing the Verified Petition

for Judicial Release under California Civil Code section 8480 (the “Verified Petition”), and filed this noticed Motion on December 9, 2025.

No opposition has been filed.

II. Legal Standard on Motion to Remove Mechanics Lien

This is a summary proceeding under California Civil Code section 8480. Once the owner is in a position to proceed under section 8480 and has satisfied the prerequisites to relief under section 8482, the claimant of the lien must justify the continued existence of the lien. So here, Petitioners bear the initial burden of establishing statutory compliance and facial grounds for relief, and Respondent bears the burden of proving lien validity.

III. Petitioners’ Motion is Granted Because the Mechanics Lien on the Property is Void.

California Civil Code section 8460(a) provides in mandatory language that the claimant of the lien “*shall* commence an action to enforce a lien within 90 days after recordation of the claim of lien. If the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable.” Civil Code § 8460(a). That statutory language is a plain as it gets.

The 90-day period runs from the date of recordation. The consequence of failing to commence suit within the time designated by the statute is that the lien becomes null and void, automatically and by operation of law. Civil Code § 8460(a).

Here, the undisputed evidence establishes that the lien was recorded on November 27, 2024. Counting from that date under Code of Civil Procedure section 12, the 90-day deadline expired on February 25, 2025. The record further establishes that no action to foreclose the Mechanics Lien has been filed or served by the Respondent, and so the lien is now legally unenforceable. Civil Code § 8460(a).

Respondent has submitted no proof of filing, complaint, summons, or service of any foreclosure action. No evidence of any credit-arrangement extension under Civil Code section 8460(b) appears in the record.

Because the 90-day period expired on February 25, 2025, and no foreclosure action was commenced within that time, the lien expired and became void and unenforceable by law. Civil Code § 8460(a). Hence, after carefully reviewing the Verified Petition and the Motion and all supporting papers and the record, the Court finds that Respondent’s \$56,000 mechanics lien is void as a matter of law under California Civil Code section 8460(a).

Respondent does not argue otherwise. Indeed, Respondent has not opposed the Motion at all, which the Court views as Respondent conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file

opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Hence, the Court **GRANTS** Petitioners’ Motion to remove the mechanics lien on the Property because the lien expired and is void and unenforceable as a matter of law.⁵ Accordingly, the Court **ORDERS** the mechanics lien on the Property be released, expunged, and removed now.

IV. Petitioners’ Accompanying Request For Attorneys’ Fees is Denied Without Prejudice Because Petitioners Do Not Submit Evidence Supporting That Request.

California Civil Code section 8488(c) provides that the prevailing party on a motion to remove mechanics “is entitled to reasonable attorney’s fees.” Civil Code § 8488(c). By its plain text, entitlement to reasonable fees under this section is mandatory once prevailing-party status is established. And a party who obtains judicial release of an invalid lien is the prevailing party for purposes of this statutory fee award.

Here, Petitioners made a proper Section 8482 demand, Respondent failed to comply, and so Petitioners filing this Verified Petition and Motion became necessary to clear title on the Property. And because the Court **GRANTS** the Verified Petition and Motion by **ORDERING** release and expungement of the mechanics lien, Petitioners are the prevailing party under Civil Code section 8488(c) and so are entitled to recover their reasonable attorney’s fees.

But in order for the Court to determine and award Petitioners their *reasonable* attorney’s fees under Civil Code Section 8488(c), Petitioners have the burden of providing evidence of what their reasonable attorneys’ fees here are. Here, Plaintiffs failed to submit and the record does not contain a declaration itemizing the hours expended and sought by Petitioner to be awarded here, the hourly *rates* of Petitioners’ counsel sought here, or a lodestar calculation. California law requires the fee applicant to document reasonable hours and rates—and Petitioners have failed to do so here. Hence, the Court cannot determine a reasonable fee amount without that requisite evidence.

Accordingly, while the Court finds that Petitioners as the prevailing parties here are entitled to recover reasonable attorney’s fees under California Civil Code section 8488(c), the Court **DENIES WITHOUT PREJUDICE** their request for attorneys’ fees here because they failed to itemize and provide supporting documents and evidence establishing the fees sought.

As this denial is without prejudice, the Court grants Petitioners **LEAVE** to file a

⁵ Because the Court **GRANTS** the Motion on this ground, the Court need not and does not address remaining arguments made by Petitioners in its Motion.

supplemental declaration, if they choose to do so, within 30 days of today itemizing counsel's hours, hourly rate, and total fees incurred, together with supporting documentation, so the Court may determine and award the reasonable attorney-fee amount.

V. Conclusion & Order

Petitioners' Motion for judicial release of the mechanics lien on the Property is **GRANTED**.

Specifically, the Court **ORDERS** that mechanics lien recorded on the Property on November 27, 2024, by El Patron Demolition, Inc., in the amount of \$56,000, recorded as Document No. 25736581 in the Official Records of Santa Clara County, California, is void and unenforceable as a matter of law under California Civil Code section 8460(a) and is hereby **RELEASED, EXPUNGED, and REMOVED** from the official records of Santa Clara County. The Santa Clara County Recorder is directed to note this **ORDER** on Document No. 25736581 in the Official Records.

Regarding Petitioners' accompanying request for attorneys' fees as the prevailing party on this Motion, that request is **DENIED WITHOUT PREJUDICE** because Petitioners failed to itemize and provide any evidence supporting the number of hours of attorney time sought, the hourly rates sought, and the total fees sought. However, the Court gives Petitioners **LEAVE** to file a supplemental declaration, if they choose to do so, within 30 days of today itemizing hours, rates, and total fees so the Court may determine and award the reasonable attorney-fee amount.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 8

Case Name: *Theo Van Buren v. Bill Holdings Inc., et al.*

Case No.: 25CV480145

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Bill Holdings, Inc.⁶, Spencer Pratt, and Milind Nimesh (“Defendant”) move under California Code of Civil Procedure Sections 473(b) and 473.5, *inter alia*, to set aside the Entries of Default entered on February 24, 2026 against Bill Holdings, Inc. and Spencer Pratt, and pending on March 2, 2026 against Milind Nimesh. Notice of Motion (the “Motion”) at 2:22-27 (filed: March 4, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On February 24, 2026, the only Entry of Default that was ever entered by the Clerk of the Court in this case against any Defendant was a “Basic Only” (no dollar amount) Entry of Default made on February 24, 2026 against *only* Defendants Bill Holdings, Inc. and Spencer Pratt. That “Basic Only” February 24, 2026 contains no dollar amounts at all and contains no Judgment to be entered against Defendants Bill Holdings, Inc. and Spencer Pratt. Regarding Defendant Milind Nimesh, that same document states that it was “NOT entered” against Milind Minesh because of various defects. (Request for Entry of Default) (see For Court Use Only section at bottom of p. 1 explaining “Default entered” and “NOT entered” here) (filed: Feb. 24, 2026).

While Plaintiff subsequently did submit multiple Requests for Default for Court Judgment (with dollar amounts listed) against Defendants Bill Holdings, Inc. and Spencer Pratt on March 20, 2026 and April 16, 2026, those Defaults were NOT entered by the Clerk because of various defects. They were all rejected.

Regarding Defendant Milind Minesh, no Default was ever entered against Defendant Milind Minesh in this case. And there are no pending Requests for Entry of Default against Defendant Milind Minesh in this case either.

All that said, Defendants’ Motion to set aside the Entries of Default entered on February 24, 2026 against Defendants Bill Holdings, Inc. and Spencer Pratt, and (construed by Defendants as) pending on March 2, 2026, against Defendant Milind

⁶ While this Defendant refers to itself in its moving papers as Bill.com, for clarity of the record the Court refers to this Defendant in this Order by the name by which it was sued in this case: Bill Holdings, Inc.

Nimesh is **GRANTED** in all respects.⁷

Under Code of Civil Procedure Section 473(b), this Court has authority to set aside any entry of default taken against a party through his or her “mistake, inadvertence, surprise, or excusable neglect.” C.C.P. § 473(b). Here, as well demonstrated through the Declaration of attorney Ryan J. Williams in Support of this Motion (“Williams Decl.”) at ¶¶ 3-5, the February 24, 2026 Entries of Default were the result of a simple mistake by counsel of paying only one filing fee instead of three for each Defendant. In light of that fact, as well as all the facts and arguments presented in the moving, opposition, and reply papers, and in the broad exercise of its discretion, the Court **GRANTS** the Motion in its entirety and **SETS ASIDE** the February 24, 2026 Entries of Default for all Defendants.⁸

Moreover, the Court **DISMISSES** without prejudice this entire case against all Defendants. Why? Because just a few days after Plaintiff read the well-reasoned and well-supported Reply papers of Defendants filed on August 25, 2026, Plaintiff next on August 28, 2026 filed a Request For Dismissal of this entire action without prejudice. Request for Dismissal at ¶¶1-3 (filed: Aug. 28, 2026). Request granted, case dismissed.

Conclusion & Order

Accordingly, Defendants’ Motion is **GRANTED** in all respects. The Entries of Default entered on February 24, 2026 against Defendants and Spencer Pratt, and pending on March 2, 2026 against Milind Nimesh, are hereby **SET ASIDE**.

Moreover, at Plaintiff’s own Request For Dismissal filed on August 28, 2026, the Court **DISMISSES** without prejudice this entire action against all Defendants now.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁷ Again, while no Entry of Fault was in fact ever entered against Defendant Milind Nimesh here, the Court hereby **SETS ASIDE** the February 24, 2026 Entry of Default (pending or otherwise) in its entirety to relieve Defendant Nimesh of any concern he may have on this point.

⁸ As the Court has **GRANTED** under Section 473(b) all the relief requested by all the Defendants in this Motion, the Court need not and does not reach Defendants’ additional arguments, e.g., under Section 473.5.

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